Showing contexts for: **custody order** in Tillana Shripal Shah W/O Shripal ... vs State Of Gujarat on 18 March, 2026

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61. It is therefore clear from the above set of facts, that the **custody** of the child was lawfully with the mother, and since it is not in dispute that the child was removed from Canada without the permission of the mother and brought to India, the father's **custody** would have to be declared as unlawful.

62. Lastly, as also noticed above, the Canadian Court, whose jurisdiction the father has acceded to, has passed an **order** directing the return of the child to Canada and in the background, it would not be NEUTRAL CITATION R/SCR.A/17368/2025 CAV JUDGMENT DATED: 18/03/2026 undefined appropriate for this Court to hold that the **custody** of the father is a lawful **custody**. In fact, the **orders** of the Canadian Court, only reinforces the above conclusion that the father is in unlawful **custody** of the son. We, therefore, hold that the **custody** of the minor child by the father is unlawful and should be restored to the mother forthwith.

C) In the case of Prateek Gupta v. Shilpi Gupta (2017), 5 year old male child had been brought to India by the father in violation of the **custody orders** passed by the US Courts and Mother sought **custody** of child by filing a writ petition of habeas NEUTRAL CITATION R/SCR.A/17368/2025 CAV JUDGMENT DATED: 18/03/2026 undefined corpus, wherein, the Hon'ble Supreme Court has held as under:

"29. While dealing with a case of **custody** of a child removed by a parent from one country to another in contravention of the **orders** of the court where the parties had set up their matrimonial home, the court in the country to which the child has been removed must first consider the question whether the court could conduct an elaborate enquiry on the question of **custody** or by dealing with the matter summarily **order** a parent to return **custody** of the child to the country from which the child was removed and all aspects relating to the child's welfare be investigated in a court in his own country. Should the court take a view NEUTRAL CITATION R/SCR.A/17368/2025 CAV JUDGMENT DATED: 18/03/2026 undefined that an elaborate enquiry is necessary, obviously the court is bound to consider the welfare and happiness of the child as the paramount consideration and go into all relevant aspects of welfare of the child including stability and security, loving and understanding care and guidance and full development of the child's character, personality and talents. While doing so, the **order** of a foreign court as to his **custody** may be given due weight; the weight and persuasive effect of a foreign judgment must depend on the circumstances of each case.

"35. There is nothing on record which may even remotely suggest that it would be harmful for the child to be returned to his native country.

"36. It is true that the child Adithya has been in India for almost two years since he was removed by the mother-- Respondent 6--contrary to the **custody orders** of the US court passed by the consent of the parties. It is also true that one of the factors to be kept in mind in exercise of the summary jurisdiction in the interests of the child is that application for **custody**/return of the child is made promptly and quickly after the child has been removed. This is so because any delay may result in the child developing roots in the country to which he has been removed. From the counter-affidavit that has been filed by Respondent 6, it is apparent that in the last two years Adithya did not have education at one place. He has moved from one school to another. He was admitted in a school at Dehradun by Respondent 6 but then removed within a few months. In the month of June 2009 the child has been admitted in some school in Chennai.